



2025:AHC:186206-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 36101 of 2025

Ghangas Breeding Farm And Hatchery

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Vipul Raj Gautam
Counsel for Respondent(s)	:	C.S.C., Narendra Kumar Tiwari

Court No. - 1

HON'BLE NEERAJ TIWARI, J.

HON'BLE VIVEK KUMAR SINGH, J.

1. Heard Ms. Kanika Huda, Advocate through video conferencing along with Sri Vipul Raj Gautam, Advocate appearing physically for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondents.

2. At the very outset, Sri Narendra Kumar Tiwari, learned counsel for the respondents submitted that earlier, petitioner had filed Writ C No. 19585 of 2025, which was disposed of vide order dated 12.06.2025 with direction to approach the authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005(hereinafter, referred to as, 'Code, 2005'). He next submitted that petitioner approached the authority concerned and vide order dated 09.09.2025, application of petitioner was rejected. He next submitted that against the order dated 09.09.2025, petitioner is having remedy to approach Consumer Grievance Redressal Forum under Clause 7.10 of the Code, 2005.

3. Learned counsel for the petitioner could not dispute the aforesaid fact, but submitted that respondents may be directed not to make any recovery till the disposal of the application by the Consumer Grievance Redressal Forum.

4. Accordingly, writ petition is **dismissed** with liberty to petitioner to file application before Consumer Grievance Redressal Forum under Clause 7.10 of the Code, 2005 within two weeks.

5. In case any such application is filed by the petitioner, same shall be decided by Consumer Grievance Redressal Forum, in accordance with law, maximum within a period of three months thereafter.

6. Till the disposal of application of petitioner, no recovery shall be made from the petitioner pursuant to impugned bill dated 02.08.2024.

7. In case no such application is filed within the time given by this Court, it is open for the respondents to proceed against the petitioner in accordance with law.

(Vivek Kumar Singh,J.) (Neeraj Tiwari,J.)

October 16, 2025

ADY